

4. ESPINO v. HUMASON II, INC., ET AL., 25CV1572**(A) Motion to Compel****(B) Motion to Compel****(C) Motion to Compel**

On August 28, 2025, Plaintiff served Form Interrogatories, Special Interrogatories, and Request for Production of Documents. (Arakelyan Decl. ¶ 3.) The parties previously agreed to several discovery extensions and were engaged in informal settlement negotiations, which included an agreement to stay discovery. (Catalano Decl. ¶¶ 3-19.) Defendant served verified, code-compliant responses to Plaintiff's Form Interrogatories – Employment, Set One, Special Interrogatories, Set One, and Plaintiff's Request for Production of Documents, Set One on April 6, 2026. (Catalano Decl. ¶ 22.)

Plaintiff's Motions do not comply with Local Rule 7.10.05. Repeated failure to comply with the requirements of the Local Rules may result in sanctions, pursuant to Local Rule 7.12.13.

The Court finds that Plaintiff's counsel failed to satisfy the requirements of § 2016.040(a) of the Code of Civil Procedure ("CCP") which requires: "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." Plaintiff sent two e-mails indicating that responses were due but did not make any further attempts. The Court would generally require the parties to further meet and confer before hearing the Motions, but Defendant has since served responses, so the Motions are moot.

In terms of sanctions, the Court finds that the imposition of sanctions would be unjust, as Plaintiff failed to comply with the requirements of CCP § 2016.040.

TENTATIVE RULING # 4: MOTION TO COMPEL FORM INTERROGATORIES, MOTION TO COMPEL PRODUCTION OF DOCUMENTS, AND MOTION TO COMPEL SPECIAL

INTERROGATORIES ARE DENIED AS MOOT. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.